

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUIC031374: JORDAN GROOM, et al. vs CALIFORNIA PHYSICIANS' SERVICE,
et al.**

08/28/2026 in Department 43

Motion for Judgment on the Pleadings by Seaview IPA

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Seaview IPA's Motion for Judgment on the Pleadings as to the Third Cause of Action.

Tentative Ruling: Defendant SeaView IPA's Motion for Judgment on the Pleadings as to the Third Causes of Action is GRANTED with leave to amend.

The Third Cause of Action of the Third Amended Complaint (TAC) filed with the Court on May 9, 2025, does not state sufficient facts to support the cause of action against Defendant SeaView for negligence. Plaintiffs failed to plead facts or law that establish the that a plan administrator holds a separate duty of care to a subscriber of a plan in its provision of care to enrollees under the subscriber's plan. (*Mintz v. Blue Cross of Cal.* (2009) 172 Cal.App.4th 1594, 1611.) Nor did they sufficiently plead Plaintiff John Groom suffered injury or damages as a result of Defendant SeaView's acts or omissions.

Accordingly, Defendant SeaView's motion for judgment on the pleadings is granted with leave to amend the complaint on or before September 19, 2026.

Moving party is ordered to serve notice of the Court's ruling.